

Central Public Academy v. State of U.P.

Allahabad High Court · Division Bench · 17 May 2022 · Writ-C No. 6242 of 2022 · **Writ disposed without merits; liberty to object under Para 6.8; licensee to decide after hearing within four weeks.**

HEADNOTE

A writ seeking certiorari against recovery of alleged electricity dues may be disposed of without examining the merits where the distribution licensee undertakes that an objection to the demand will be decided in accordance with law. The consumer is given liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within a fixed period, and the licensee is directed to decide it after reasonable opportunity of hearing within a further fixed period.

FACTUAL SUMMARY

Central Public Academy filed a writ in the Allahabad High Court seeking certiorari to quash an order dated 31 July 2021 directing recovery of Rs. 32,03,199 as alleged electricity dues. Counsel for the Power Distribution Corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period. Counsel for both sides were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

liberty to object to electricity-dues recovery under Para 6.8

HOLDING

Without expressing any opinion on the merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks. If the objection is filed in time, the licensee shall decide it in accordance with law within the next four weeks after affording reasonable opportunity of hearing. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The Court declined to examine the recovery on merits and relegated the consumer to the Para 6.8 objection before the licensee. ¶ 1

para-6.8-objection-alternate-remedy Liberty was granted to file a Para 6.8 objection to the impugned demand, with a direction that a timely objection be decided after hearing. ¶ 1

fresh-objection-under-clause-6.8 The consumer was permitted to submit a fresh Para 6.8 objection within four weeks of the order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 31 JULY 2021 RECOVERY OF RS. 32,03,199 AS ELECTRICITY DUES

The Court expressly declined to express any opinion on the merits. ¶ 1